

3401 as the court had not received several documents prior to the trial call, this was also reported by defense attorney Mr. Muhammad. The court permitted a two-week continuance to February 20th, 2026, informing Mr. Brummel he was to submit a declaration indicating availability of trial counsel as well as address the deficiencies in complying with LR 3401. On 2.17.26, the court received a notification that Plaintiff had a change of attorney, listing Larry Chae and Breana Rucker as the attorneys of record. Subsequently, Mr. Lunn submitted a declaration with the court on 2.19.26 indicating he, Mr. Chae, and Mr. Arabi (previously listed as attorney for Plaintiff's before this matter was set for trial) were unavailable. On 2.20.26, prior to the trial call, Ms. Rucker filed a declaration stating she was assigned exclusively to pre-trial matters and did not serve as trial counsel. On the trial call for 2.20.26, Mr. Brummel reiterated the contents of the attorneys' declarations. He also was unable to provide to the court an explanation as to why the matter was assigned to another attorney (Mr. Chae) for trial purposes and 2 days later that attorney submitting a declaration stating they were unavailable. Additionally, on the 20th, no declaration or documentation addressing Local Rule 3401 was submitted. The court instructed the parties the matter would be called on Monday 2.23.26, to confirm the availability of Mr. Muhammed as he had two matters out of county pending trial call. On Monday, February 23rd, the trial was called for the third time, with defense Mr. Muhammad announcing ready and Mr. Smith on behalf of Plaintiff indicating to the court they did not have any updated information about availability of the trial attorneys. Both parties were instructed to come to court on February 25th, ready to proceed for trial. After Mr. Brummel informed the court that Plaintiff's were not ready to proceed and defense attorneys Mr. Muhammad and Ms. Hawkanson (sic) were ready to proceed on behalf of Defendant, the case was dismissed without prejudice.

The consistent disregard of the court's order regarding Local Rule 3401, and the failure of Plaintiff's counsel to provide an attorney ready to proceed for trial over multiple dates, does not warrant mandatory relief, as distinguished by the failure of an attorney to pay a venue transfer fee, the basis of *Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, cited by counsel for Plaintiff. For the above reasons mandatory relief is denied. Discretionary relief is denied on the same basis.

Motion to Set Aside Dismissal is DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504788	PRALLE VS BANK OF AMERICA	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY CATHERINE PRALLE

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).)

Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Plaintiff's attorney has not complied with the mandatory requirements under California Rule of Court 3.1324, including failing to identify specifically the changes to the FAC, addressing when the facts pertaining to the proposed SAC were discovered and why the amendment was not submitted earlier.

Motion for Leave to File Second Amended Complaint DENIED.

Case Management Conference and OSC continued to 9.14.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508414	MAUL VS VERISMA SYSTEMS, INC.	MOTION TO DISMISS COMPLAINT OF KIMBERLY MAUL BY VERISMA SYSTEMS, INC.

Tentative Ruling: CCP section 418.10(a)(2) provides that “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes:... (2) To stay or dismiss the action on the ground of inconvenient forum. Further, section 418.10(e)(3) provides that “[f]ailure to make a motion under this section at the time of filing a demurrer or motion to strike constitutes a waiver of the issues of lack of personal jurisdiction, inadequacy of process, inadequacy of service of process, inconvenient forum, and delay in prosecution.” (CCP §418.10(e)(3).)

CCP section 410.30 provides “[w]hen a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (CCP §410.30(a).) Further, section 410.30 provides that “418.10 do[es] not apply to a motion to stay or dismiss the action by a defendant who has made a general appearance.” (CCP §410.30(b).)

Plaintiff asserts that pursuant to the language in section 418.10(a)(2) this motion is untimely because it was filed after the time to plead had passed. However, Defendant has entered a general appearance in this matter, therefore, section 418.10(a)(2) does not apply, pursuant to the provisions in section 410.30(b). Accordingly, a motion to dismiss by Defendant, pursuant to CCP §410.30(a) would not be untimely. However, Defendant incorrectly moved pursuant to CCP §418.10(a)(2), which does not apply once a general appearance has been entered. Further, the moving papers do not address why the interests of substantial justice would be served by having the matter heard in Georgia.

Motion to Dismiss for Improper Venue DENIED.

Case Management Conference continued to 8.19.26.

The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address